

Affiliate Agreement - TradeFundrr, LLC (Template)

Effective Date: [DATE]

Between:

TradeFundrr, LLC, a Delaware limited liability company, with its principal place of business at 88 Pine Street, 23rd Floor, New York, NY 10005 (“Company”)

and

[AFFILIATE LEGAL NAME], a [ENTITY TYPE] organized under the laws of [JURISDICTION], with its principal place of business at [ADDRESS] (“Affiliate”)

Each a “Party” and collectively the “Parties.”

RECITALS

WHEREAS, the Company develops and offers proprietary trading programs, courses, tools, and related products and services;

WHEREAS, Affiliate desires to act as a non-exclusive affiliate of the Company, marketing and promoting the Company’s Products to end customers in exchange for commissions on qualifying sales;

WHEREAS, the Parties wish to establish the terms governing Affiliate’s marketing activities, commission entitlements, and obligations;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Definitions

1.1 “Affiliate Commission Rate” means the commission rate or rates applicable to Affiliate as set forth in Exhibit B (Affiliate Commission Schedule), which may include: (i) a standard rate applicable to both initial sales and activation fees; (ii) separate rates for initial sales and activation fees; and (iii) product-specific rates where noted.

1.2 “Attributed Sale” means a Completed Purchase of a commission-eligible Product that is recorded by the Tracking Mechanism as originating from Affiliate’s marketing efforts. In the event of a dispute over attribution, including where a customer interacts with multiple affiliate channels or a direct Company channel, the following rules apply in order of priority: (i) the Tracking Mechanism’s recorded data controls; (ii) if the Tracking Mechanism fails to record or is ambiguous due to a technical failure, malfunction, or outage of the Tracking Mechanism (as opposed to user error by Affiliate), the Parties shall cooperate in good faith to reconstruct attribution from the Company’s available records, including but not limited to server logs, payment processor data, customer-submitted referral information, and CRM records, and the Company shall make such records available to Affiliate within ten (10) business days of a written request; (iii) if the Tracking Mechanism fails to record or is ambiguous for reasons other than a Company-side technical failure, the sale is attributed to the channel associated with the

customer's last click or referral interaction within thirty (30) days prior to purchase; and (iv) if attribution still cannot be determined after the foregoing steps, the sale is not attributed to Affiliate.

1.3 “Change of Control” means any transaction or series of related transactions resulting in: (i) the transfer, sale, or issuance of more than fifty percent (50%) of the voting equity interests of a Party to a person or entity (or group of affiliated persons or entities) that did not hold such interests immediately prior to the transaction; (ii) a merger, consolidation, or similar business combination in which the holders of a Party's voting equity interests immediately prior to the transaction hold less than fifty percent (50%) of the voting equity interests of the surviving or resulting entity; or (iii) the sale or transfer of all or substantially all of a Party's assets.

1.4 “Commissionable Transaction” means: (i) a Completed Purchase (initial sale at the Resale Price); and (ii) any activation fee collected by the Company from an end customer attributable to an Attributed Sale, each time such a fee is collected, as listed in Exhibit A. For the avoidance of doubt, monthly subscription fees, recurring charges, and any other periodic fees are not Commissionable Transactions and do not generate commissions under this Agreement.

1.5 “Completed Purchase” means a transaction in which an end customer has purchased a Product at the applicable Resale Price and payment has been received in full by the Company.

1.6 “Compliance Policy” means the marketing compliance standards, disclosure requirements, and operational procedures set forth in Exhibit D, as updated from time to time in accordance with Section 4.3(c).

1.7 “Confidential Information” has the meaning set forth in Section 8.1.

1.8 “Marketing Materials” means any marketing materials, advertising content, social media posts, landing pages, email campaigns, or other promotional materials relating to the Products.

1.9 “Personal Data” has the meaning given to “personal data” under the General Data Protection Regulation (EU) 2016/679 (“GDPR”) and, where applicable, the equivalent term under other applicable data protection laws, including “personal information” as defined under the California Consumer Privacy Act (Cal. Civ. Code §§ 1798.100 et seq., as amended, “CCPA”).

1.10 “Products” means any and all trading programs, courses, subscriptions, tools, and related products or services offered by the Company and authorized for affiliate marketing under this Agreement, as set forth in Exhibit A (Product Schedule), which may be updated from time to time in accordance with Section 2.4. For the avoidance of doubt, only Products designated as commission-eligible in Exhibit A shall generate commissions under Section 3.

1.11 “Prohibited Conduct” has the meaning set forth in Section 7.

1.12 “Resale Price” means the price at which each Product is to be offered to end customers, as specified in Exhibit A. Where a Product carries special resale pricing (identified in Exhibit A), the Resale Price is the discounted price. Where no special resale pricing applies, the Resale Price equals the Retail Price.

1.13 “Retail Price” means the standard, non-discounted price for each Product as published by the Company and listed in Exhibit A.

1.14 “Tracking Mechanism” means the unique referral links, discount codes, UTM parameters, cookies, pixel-based tracking, or other attribution technology designated by the Company and assigned to Affiliate for the purpose of identifying Attributed Sales. The Company shall provide and maintain the Tracking Mechanism and shall assign unique tracking identifiers to Affiliate. The Company shall notify Affiliate of any material changes to the Tracking Mechanism at least ten (10) business days in advance.

2. Appointment and Scope

2.1 Affiliate Appointment. The Company hereby appoints Affiliate, and Affiliate accepts appointment, as a non-exclusive affiliate authorized to market and promote the Products to end customers. Nothing in this Agreement restricts the Company from selling the Products directly, appointing other affiliates, resellers, or distributors, or distributing the Products through any other channel.

2.2 No Sub-Affiliates. Affiliate shall not appoint, authorize, or permit any third party to market or promote the Products on Affiliate’s behalf or using Affiliate’s Tracking Mechanism identifiers. Affiliate’s rights under this Agreement are personal to Affiliate and may not be delegated, sublicensed, or shared.

2.3 Product Pricing. The Products shall be offered to end customers exclusively at the Resale Prices set forth in Exhibit A (except for commission-ineligible Products for which no Resale Price is specified in Exhibit A, the pricing of which shall be determined by the Company). Affiliate shall not discount, bundle, or alter the pricing of any Product without the Company’s prior written consent.

2.4 Addition and Removal of Products. The Company may propose new Products for inclusion in Exhibit A at any time. Any addition of a new Product, including its Resale Price and applicable commission rate (if different from the Affiliate Commission Rate), shall require the mutual written agreement of the Parties by executing an updated Exhibit A and, where applicable, an updated Exhibit B. The Company may remove a Product from Exhibit A upon thirty (30) days’ prior written notice to Affiliate, provided that commissions on Commissionable Transactions for the removed Product that occur before the effective date of removal shall remain payable.

2.5 Collection of Payment. The Company shall collect all payments from end customers. Affiliate shall not collect payment from end customers on behalf of the Company unless expressly authorized in writing.

2.6 Commission-Ineligible Products. Products designated as not commission-eligible in Exhibit A (including promotional accounts) may be marketed by Affiliate with the Company’s prior written consent, but shall not generate any commission.

3. Commission Structure

3.1 Commission on Initial Sales. The Company shall pay Affiliate a commission on each Attributed Sale of a commission-eligible Product at the Affiliate Commission Rate applicable to

initial sales as set forth in Exhibit B, applied to the applicable Resale Price for the Product sold. Product-specific initial-sale commission rates, if any, shall be noted in Exhibit B and shall govern for those Products.

3.2 Activation Fee Commissions. For each commission-eligible Product that carries an activation fee (as listed in Exhibit A), the Company shall pay Affiliate a commission on each activation fee actually collected from an end customer attributable to an Attributed Sale, at the Affiliate Commission Rate applicable to activation fees as set forth in Exhibit B. If Exhibit B does not specify a separate activation fee rate, the standard Affiliate Commission Rate for initial sales shall apply to activation fees. Product-specific activation fee commission rates, if any, shall be noted in Exhibit B and shall govern for those Products. A commission is payable each time an activation fee is collected, including each time the same customer pays a further activation fee (for example, upon restarting or re-entering a Product after a prior account has ended).

3.3 Exclusion of Recurring Fees. For the avoidance of doubt, monthly subscription fees, recurring charges, and any other periodic fees listed in Exhibit A are not commissionable under this Agreement. Activation fees (including repeat activation fees paid when a customer restarts or re-enters a Product) are commissionable under Section 3.2 and are not recurring charges or periodic fees for purposes of this Section.

3.4 Commission Base. Commissions under Section 3.1 are calculated on the Resale Price (the initial purchase price). Commissions under Section 3.2 are calculated on the activation fee. No other fees or charges generate commissions unless expressly agreed in writing and noted in Exhibit B.

3.5 Holdback Reserve. The Company shall withhold ten percent (10%) of each month's total commission payout (the "Holdback") as a reserve against potential refunds, chargebacks, and payment reversals under Section 3.7. The Holdback shall be reconciled quarterly: within fifteen (15) days after the end of each calendar quarter, the Company shall apply the Holdback against any outstanding refund, chargeback, or clawback amounts owed by Affiliate, and shall release the remaining balance to Affiliate. Upon termination of this Agreement, the final Holdback shall be retained by the Company for one hundred eighty (180) days following the effective date of termination, after which the Company shall reconcile any remaining obligations and release the net balance to Affiliate within thirty (30) days.

3.6 Payment Terms. Commissions (net of the Holdback) shall be calculated on a calendar-month basis and paid within thirty (30) days following the end of each calendar month in which the Commissionable Transactions occurred. All commission obligations under this Agreement are denominated in United States dollars (USD). Payments shall be made via wire transfer, ACH, or through the Rise platform (Riseworks.io), at the Company's election, to an account or wallet designated by Affiliate in writing. Where payment is made through the Rise platform or any other method involving conversion to cryptocurrency, stablecoin, or any non-USD currency, the Company's obligation is discharged upon transmission of the USD-equivalent amount as calculated at the conversion rate at the time of the Company's initiation of payment; any currency fluctuation, conversion loss, or volatility occurring after the Company initiates payment shall be borne solely by Affiliate. If a selected payment method becomes unavailable due to platform outage, regulatory action, frozen funds, or other circumstances beyond the Company's reasonable control, the Company shall promptly notify Affiliate and remit payment through an

alternative method specified in this Section within ten (10) business days of the original payment due date; such delay shall not constitute a breach of this Agreement. All bank fees, wire transfer fees, platform transaction fees, and currency conversion costs incurred on the receiving end shall be borne by Affiliate. All commission amounts stated in this Agreement are exclusive of taxes.

3.7 Refunds and Chargebacks. If an end customer receives a refund, initiates a chargeback, or reverses payment on a Commissionable Transaction after a commission has been paid to Affiliate, the Company shall be entitled to: (i) apply the corresponding commission amount against the Holdback; and (ii) to the extent the Holdback is insufficient, deduct the remaining amount from the next commission payment(s) due to Affiliate. If no future commissions are due or the outstanding balance exceeds future commissions reasonably expected, Affiliate shall remit the overpaid commission amount to the Company within thirty (30) days of written demand. The Company shall notify Affiliate promptly of any chargeback and provide reasonable documentation. Commissions on Commissionable Transactions that are reversed within the same calendar month in which they occurred shall not be included in that month's commission calculation. The Company's right to claw back commissions under this Section shall apply only to refunds, chargebacks, or payment reversals that occur within one hundred eighty (180) days of the original transaction date. After such 180-day period, commissions shall be deemed fully earned and non-recoverable, except in cases of Prohibited Conduct, in which case the clawback right shall have no time limitation.

3.8 Reporting. The Company shall provide Affiliate with a monthly statement showing: (i) the number of Attributed Sales by Product; (ii) activation fees collected; (iii) the Holdback withheld and any amounts applied; (iv) any adjustments under Section 3.7; and (v) the total commission payable (net of Holdback) for the preceding calendar month. The statement shall include sufficient detail for Affiliate to verify attribution, including Tracking Mechanism data associated with each Attributed Sale.

3.9 Disputes. If Affiliate disputes any commission calculation, Holdback application, or attribution determination, Affiliate must notify the Company in writing within fifteen (15) days of receiving the monthly statement. The Parties shall work in good faith to resolve any dispute. Failure to dispute within this period constitutes acceptance of the statement.

3.10 Taxes and Tax Reporting. Each Party is responsible for its own taxes arising from this Agreement. The Company will report commissions paid to Affiliate on IRS Form 1099 (or applicable successor form) to the extent required by law. Affiliate shall provide the Company with a completed IRS Form W-9 (or W-8BEN/W-8BEN-E, as applicable) prior to the first commission payment. If the Company is required by law to withhold any taxes from commission payments, the Company shall deduct such amounts, remit them to the applicable taxing authority, and provide Affiliate with documentation of the withholding.

3.11 Set-Off. The Company may set off any amounts owed by Affiliate to the Company under this Agreement, including without limitation refund and chargeback recoveries under Section 3.7 and commission clawbacks under Section 7.3, against any commissions, Holdback balances, or other amounts payable to Affiliate. The Company shall provide written notice and reasonable documentation of any set-off.

4. Affiliate Obligations

4.1 Prior Approval of Marketing Materials. Affiliate shall not publish, distribute, or otherwise use any Marketing Materials unless and until such Marketing Materials have been submitted to the Company and approved in writing. Affiliate shall submit all proposed Marketing Materials to the Company at least five (5) business days prior to intended use. The Company shall approve or reject submitted Marketing Materials within five (5) business days of receipt; if the Company does not respond within such period, the Marketing Materials shall be deemed not approved. Approval may be revoked by the Company at any time upon written notice, and Affiliate shall immediately cease use of such materials.

4.2 Marketing Standards. Affiliate shall market and promote the Products in a professional manner consistent with the Company's brand guidelines and any Marketing Materials approved by the Company. Affiliate shall not make any representations, warranties, or guarantees regarding the Products that are not expressly authorized by the Company in writing.

4.3 Advertising, Consumer-Protection, and Marketing Compliance.

- (a) **Core Prohibitions.** Affiliate shall not, in connection with the marketing of the Products:
 - (i) make any express or implied earnings claim, income claim, profit claim, or performance claim that is not truthful, substantiated by competent and reliable evidence, and expressly pre-authorized by the Company in writing; (ii) present any endorsement, testimonial, review, or case study without disclosing the material connection between the endorser and Affiliate or the Company (as applicable) clearly and conspicuously; (iii) represent or imply that the Products guarantee trading profits or income, that users will achieve particular financial outcomes, that funded-account programs eliminate financial risk, or that the Products constitute investment advice or securities recommendations; or (iv) send unsolicited commercial communications, make unsolicited calls or texts using automated systems, or deploy cookies or tracking technologies on its own properties, in each case in violation of applicable law.
- (b) **Compliance with Applicable Law.** Affiliate shall comply with all applicable advertising, consumer-protection, endorsement, financial-promotion, anti-spam, telemarketing, electronic-communications, and cookie-consent laws in each jurisdiction where it markets the Products, including without limitation the FTC's Guides Concerning the Use of Endorsements and Testimonials in Advertising (16 CFR Part 255), the CAN-SPAM Act, the Telephone Consumer Protection Act, Canada's Anti-Spam Legislation, and the EU ePrivacy Directive and its national implementations (each, as applicable to Affiliate's activities in the relevant jurisdiction).
- (c) **Compliance Policy.** The Company shall maintain a Compliance Policy (Exhibit D) setting forth the specific operational procedures, disclosure formats, substantiation standards, consent-management requirements, and record-retention periods that implement the obligations in this Section 4.3. The Company may update the Compliance Policy upon thirty (30) days' prior written notice to Affiliate; provided, however, that any update that materially increases Affiliate's obligations beyond what applicable law requires shall not be effective unless agreed in writing by both Parties. Updates that

reflect changes in applicable law, regulatory guidance, or advertising-platform policies shall be deemed not to materially increase Affiliate's obligations.

- (d) **Financial-Promotion Compliance.** Affiliate shall not market the Products into any jurisdiction where doing so would require a license, registration, or regulatory approval that neither Affiliate nor the Company holds. Affiliate shall promptly notify the Company if it receives any inquiry or communication from a financial regulator related to the marketing of the Products. The Company retains sole discretion to restrict marketing of the Products in any jurisdiction by written notice.

4.4 Prohibition on Paid Search Traffic. Affiliate shall not run paid advertising campaigns that direct traffic to any referral link, affiliate link, or Tracking Mechanism URL. This includes, without limitation, Google Ads, Bing Ads, Meta Ads, and any other paid search, display, social media, or pay-per-click advertising platform where the destination URL is a referral link or Tracking Mechanism URL. Affiliate may run paid advertising to its own websites or landing pages, provided that such pages do not automatically redirect to a referral link or Tracking Mechanism URL and that any Marketing Materials on such pages have been approved under Section 4.1.

4.5 No Authority to Bind; No Agency. Affiliate is an independent contractor. Nothing in this Agreement creates a joint venture, partnership, employment, or agency relationship between Affiliate and the Company. Affiliate has no authority to bind the Company or make commitments on the Company's behalf. Affiliate shall ensure that all communications and Marketing Materials clearly state that Affiliate is an independent affiliate and does not act on behalf of or represent the Company.

4.6 Intellectual Property. Affiliate may use the Company's name, trademarks, and logos solely for the purpose of marketing the Products under this Agreement and in accordance with any brand guidelines provided by the Company. All goodwill arising from such use inures to the Company. Affiliate shall not modify, alter, or create derivative works from the Company's intellectual property.

4.7 Anti-Corruption and FCPA Compliance. Affiliate represents and warrants that neither Affiliate nor any of its officers, directors, employees, or agents has made or will make, directly or indirectly, any payment, offer, or promise of anything of value to any government official, political party, or public international organization for the purpose of obtaining or retaining business or securing an improper advantage in connection with this Agreement. Affiliate shall comply with the U.S. Foreign Corrupt Practices Act, the UK Bribery Act 2010, and all other applicable anti-corruption laws. A breach of this Section shall constitute grounds for immediate termination under Section 6.4.

4.8 Sanctions and Export Compliance. Affiliate represents and warrants that it is not: (i) located in, organized under the laws of, or a resident of any country or territory subject to comprehensive U.S. sanctions (including Cuba, Iran, North Korea, Syria, and the Crimea, Donetsk, and Luhansk regions of Ukraine, as updated from time to time); (ii) listed on the U.S. Treasury Department's Specially Designated Nationals and Blocked Persons List, the U.S. Commerce Department's Entity List, or any other applicable restricted-party list; or (iii) owned or controlled by any such person or entity. Affiliate shall not market, sell, or facilitate access to

the Products to any end customer in a sanctioned jurisdiction or to any sanctioned person. A breach of this Section shall constitute grounds for immediate termination under Section 6.4.

4.9 Data Protection. To the extent Affiliate processes Personal Data in connection with this Agreement, the Parties' respective obligations shall be governed by the Data Processing Agreement attached as Exhibit C, which is incorporated by reference.

4.10 Non-Circumvention. During the term of this Agreement and for a period of twelve (12) months following its termination or expiration, Affiliate shall not directly or indirectly: (i) solicit, divert, or attempt to divert any end customer introduced through the Tracking Mechanism to purchase competing products or services that are substantially similar to the Products; or (ii) bypass, avoid, or circumvent the Tracking Mechanism or this Agreement to avoid the payment of commissions, fees, or other obligations hereunder. This Section does not restrict Affiliate from marketing or selling products or services that are not substantially similar to the Products.

4.11 Change of Control Notification. Affiliate shall notify the Company in writing at least thirty (30) days prior to any anticipated Change of Control of Affiliate. If Affiliate undergoes a Change of Control, the Company may, in its sole discretion, within thirty (30) days of receiving notice (or, if no notice was provided, within thirty (30) days of becoming aware of the Change of Control): (i) consent to the continuation of this Agreement; or (ii) terminate this Agreement immediately upon written notice. Failure to provide timely notice of a Change of Control shall constitute a material breach.

4.12 Compliance with Law. Affiliate shall comply with all applicable laws, rules, and regulations in connection with its activities under this Agreement, including without limitation the specific compliance requirements set forth in this Section 4.

4.13 Insurance. Affiliate shall obtain and maintain, at its own expense, throughout the term of this Agreement and for a period of one (1) year following termination or expiration, cyber liability and privacy insurance with a minimum limit of five hundred thousand U.S. dollars (\$500,000) per claim and in the aggregate, covering network security liability, privacy liability, data breach response costs, and regulatory defense. All policies shall name the Company as an additional insured and shall provide that the insurer will give the Company at least thirty (30) days' prior written notice of cancellation, non-renewal, or material change. Affiliate shall provide the Company with certificates of insurance upon request. The Company may waive or adjust the insurance requirements of this Section in writing on a per-affiliate basis; any such waiver or adjustment shall not be deemed a waiver of any other obligation under this Agreement.

5. Company Obligations

5.1 Product Delivery. The Company shall be responsible for delivering the Products to end customers who complete a purchase.

5.2 Customer Support. The Company shall provide end-customer support for the Products. Affiliate shall direct all customer inquiries regarding Product content, performance, or technical issues to the Company.

5.3 Marketing Materials and Compliance Support. The Company shall provide Affiliate with marketing materials, Product descriptions, brand guidelines, approved earnings disclaimers, and

the Compliance Policy (Exhibit D) as reasonably necessary for Affiliate to perform under this Agreement.

5.4 Tracking Mechanism. The Company shall provide and maintain the Tracking Mechanism, including issuing unique tracking identifiers for Affiliate, and shall ensure the Tracking Mechanism is reasonably accurate and operational. The Company shall be responsible for implementing and maintaining any required cookie or tracking consent mechanism on its own websites and checkout pages. The Company shall promptly notify Affiliate of any material Tracking Mechanism failures or outages. In the event of a failure or outage, the attribution reconstruction process set forth in Section 1.2(ii) shall apply.

5.5 Affiliate Verification Right. Upon Affiliate's written request, made no more than once per calendar quarter and with at least fifteen (15) business days' prior notice, the Company shall make available for inspection by Affiliate or its designated independent auditor (who shall be bound by confidentiality obligations acceptable to the Company) such books and records as are reasonably necessary to verify the accuracy of Attributed Sale counts, activation fee collections, Holdback balances, Tracking Mechanism data, and commission calculations for the twelve (12)-month period preceding the request. If the inspection reveals an underpayment exceeding five percent (5%) for any calendar month, the Company shall promptly pay the deficiency plus interest at one percent (1%) per month from the date originally due, and shall reimburse Affiliate's reasonable audit costs. If no such underpayment is found, Affiliate shall bear its own audit costs.

5.6 Regulatory Cooperation. The Company shall promptly notify Affiliate if the Company receives any inquiry, enforcement action, or regulatory communication from any governmental authority that relates to the Products or their marketing. The Parties shall cooperate in good faith in responding to any such matter. The Company retains sole discretion to modify, suspend, or discontinue any Product or restrict marketing in any jurisdiction in response to regulatory developments, and such actions shall not constitute a breach of this Agreement.

6. Term and Termination

6.1 Initial Term. This Agreement shall commence on the Effective Date and continue for a period of one (1) year (the "Initial Term").

6.2 Renewal. Following the Initial Term, this Agreement shall automatically renew for successive one (1)-year periods unless either Party provides written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

6.3 Termination for Convenience. Either Party may terminate this Agreement at any time, with or without cause, by providing thirty (30) days' prior written notice to the other Party.

6.4 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party: (i) materially breaches this Agreement and fails to cure such breach within fifteen (15) days of receiving written notice thereof; (ii) engages in Prohibited Conduct; (iii) breaches Section 4.7, 4.8, or 4.9 (including Exhibit C); or (iv) becomes insolvent, files for bankruptcy, or has a receiver appointed for a substantial part of its assets. The Company may also terminate this Agreement pursuant to Section 4.11 upon a Change of Control of

Affiliate. Either Party may terminate this Agreement immediately upon written notice if performance becomes illegal due to sanctions, regulatory action, or a change in applicable law.

6.5 Effect of Termination. Upon termination or expiration: (i) Affiliate shall immediately cease marketing and selling the Products; (ii) the Company shall pay all commissions earned on Commissionable Transactions that occurred prior to the effective date of termination, subject to set-off under Section 3.11 and the post-termination Holdback retention under Section 3.5; (iii) Affiliate shall immediately cease all use of the Company's intellectual property and return or destroy any Confidential Information; (iv) Affiliate shall comply with the data return and deletion obligations in Exhibit C; and (v) all provisions that by their nature are intended to survive shall survive in accordance with Section 13.8.

6.6 Tail Commissions. Following termination or expiration, the Company shall pay Affiliate commissions on Attributed Sales that are Completed Purchases occurring within thirty (30) days after the effective date of termination, provided that such sales are directly traceable through the Tracking Mechanism to marketing efforts that occurred prior to termination. Activation fee commissions under Section 3.2 shall also be payable on activation fees collected within thirty (30) days after termination from end customers attributable to pre-termination Attributed Sales. Tail commissions shall be calculated at the Affiliate Commission Rate and shall be subject to the post-termination Holdback. No tail commissions shall be owed on transactions occurring more than thirty (30) days after termination.

7. Prohibited Conduct and Abuse

7.1 Prohibited Conduct. The following activities constitute "Prohibited Conduct" under this Agreement:

- (i) Generating fraudulent, fictitious, or fabricated sales, including the use of stolen payment information, synthetic identities, or manufactured customer accounts;
- (ii) Incentivizing purchases through unauthorized cashback, rebate, or kickback schemes that effectively reduce the Resale Price below the amount specified in Exhibit A;
- (iii) Making earnings claims, income claims, profit claims, performance claims, or misleading financial representations in violation of Section 4.3(a);
- (iv) Failing to disclose material connections as required by Section 4.3(a)(ii) and the Compliance Policy;
- (v) Sending unsolicited commercial communications, making unsolicited automated calls or texts, or deploying cookies or tracking technologies in violation of applicable law or Section 4.3(a)(iv);
- (vi) Purchasing Products through Affiliate's own referral channels to generate commissions (self-referral);
- (vii) Reselling or transferring purchased Product accounts from one end customer to another;
- (viii) Publishing, distributing, or using Marketing Materials not approved under Section 4.1;

- (ix) Tampering with, circumventing, or manipulating the Tracking Mechanism;
- (x) Running paid advertising campaigns that direct traffic to any referral link, affiliate link, or Tracking Mechanism URL in violation of Section 4.4;
- (xi) Marketing or claiming commissions on commission-ineligible Products in violation of Section 2.6;
- (xii) Processing Personal Data in violation of Exhibit C;
- (xiii) Marketing the Products into a jurisdiction in violation of Section 4.3(d);
- (xiv) Appointing, authorizing, or permitting any third party to market the Products on Affiliate's behalf in violation of Section 2.2; and
- (xv) Any other activity that the Company reasonably determines constitutes fraud, abuse, or manipulation of this Agreement.

7.2 Monitoring and Audit. The Company reserves the right to monitor sales activity, advertising campaigns, referral traffic sources, and marketing compliance, and to investigate suspected Prohibited Conduct. The Company may audit Affiliate's sales records, marketing materials, advertising accounts, and consent records upon reasonable notice.

7.3 Remedies for Prohibited Conduct. Upon determination that Prohibited Conduct has occurred, the Company may, in its sole discretion: (i) withhold or claw back commissions attributable to the Prohibited Conduct, without regard to the 180-day limitation in Section 3.7; (ii) suspend Affiliate's participation pending investigation; and (iii) terminate this Agreement immediately pursuant to Section 6.4(ii). These remedies are cumulative and do not limit any other rights or remedies available at law or in equity.

8. Confidentiality

8.1 Confidential Information. Each Party agrees to keep confidential all non-public business, financial, and technical information disclosed by the other Party in connection with this Agreement ("Confidential Information"), including without limitation commission rates, sales data, Tracking Mechanism specifications, and customer information. Confidential Information does not include information that: (i) is or becomes publicly available without breach of this Agreement; (ii) was known to the receiving Party prior to disclosure; (iii) is independently developed without reference to the disclosing Party's Confidential Information; or (iv) is received from a third party without restriction.

8.2 Duration. The obligations under this Section 8 shall survive termination for a period of two (2) years.

9. Representations and Warranties

9.1 Mutual Representations. Each Party represents and warrants that: (i) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of formation; (ii) it has full power and authority to enter into and perform this Agreement; (iii) the execution and performance of this Agreement does not conflict with any other agreement to which it is a party;

and (iv) this Agreement constitutes a legal, valid, and binding obligation enforceable against it in accordance with its terms.

9.2 Regulatory Good-Standing Representations. Each Party represents and warrants that neither it nor any of its principals, officers, directors, or controlling persons is: (i) subject to any order, judgment, decree, or sanction of the SEC, CFTC, FINRA, or NFA (or any equivalent regulatory body) that would prohibit, restrict, or condition its performance under this Agreement; or (ii) subject to any statutory disqualification under Section 3(a)(39) of the Securities Exchange Act of 1934 or CFTC Regulation 1.63. Each Party shall promptly notify the other if any of the foregoing ceases to be accurate.

9.3 Affiliate Representations. Affiliate additionally represents and warrants that: (i) it holds all licenses, permits, and authorizations necessary to perform its obligations under this Agreement in each jurisdiction where it operates; and (ii) all information provided to the Company in connection with this Agreement is and will be accurate and complete in all material respects.

9.4 Company Representations. The Company additionally represents and warrants that: (i) it has all rights necessary to authorize the marketing of the Products; (ii) the Products, as delivered by the Company, do not, to the Company's knowledge, infringe any third party's intellectual property rights; (iii) to the Company's knowledge as of the Effective Date, the Products are lawful to offer and sell in the United States in the manner contemplated by this Agreement; and (iv) as of the Effective Date, the Company is not aware of any pending regulatory proceeding that would prohibit the sale or marketing of the Products in the United States. The Company does not represent or warrant the legality of the Products or their marketing in any jurisdiction outside the United States; responsibility for determining Product-marketing legality in non-U.S. jurisdictions rests with Affiliate pursuant to Section 4.3(d).

9.5 Disclaimer. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

10. Limitation of Liability

10.1 Cap. Except for liability arising from Prohibited Conduct, breach of Section 8, breach of Section 4.9 or Exhibit C, indemnification obligations under Section 11, and payment obligations under Section 3, neither Party's aggregate liability under this Agreement shall exceed the total commissions paid or payable to Affiliate in the twelve (12) months preceding the event giving rise to the claim.

10.2 Consequential Damages. In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages arising out of or related to this Agreement, regardless of the theory of liability.

11. Indemnification

11.1 By Affiliate. Affiliate shall indemnify, defend, and hold harmless the Company and its officers, directors, employees, and agents from and against any claims, damages, losses, liabilities, fines, penalties, and expenses (including reasonable attorneys' fees) arising out of or related to: (i) Affiliate's breach of this Agreement, including Exhibits C and D; (ii) Prohibited

Conduct; (iii) Affiliate's violation of applicable law, including advertising, consumer-protection, anti-corruption, sanctions, data protection, anti-spam, telemarketing, financial-promotion, and cookie-consent laws; (iv) any data breach, unauthorized disclosure, or misuse of Personal Data caused by Affiliate; or (v) any third-party claim arising from Affiliate's actual or alleged authority to act on behalf of the Company.

11.2 By Company. The Company shall indemnify, defend, and hold harmless Affiliate and its officers, directors, employees, and agents from and against any claims, damages, losses, liabilities, and expenses (including reasonable attorneys' fees) arising out of or related to: (i) the Company's breach of this Agreement; (ii) any claim that the Products infringe a third party's intellectual property rights; or (iii) any regulatory enforcement action directly arising from the Company's own marketing of the Products (as distinct from marketing conducted by Affiliate).

11.3 Indemnification Procedure. The Party seeking indemnification shall: (i) promptly notify the indemnifying Party in writing, provided that failure to provide prompt notice shall not relieve the indemnifying Party except to the extent materially prejudiced; (ii) grant the indemnifying Party sole control of the defense and settlement, provided that the indemnifying Party shall not settle in a manner that imposes obligations on the indemnified Party without prior written consent (not to be unreasonably withheld); and (iii) provide reasonable cooperation at the indemnifying Party's expense. The indemnified Party may participate at its own expense.

12. Dispute Resolution

12.1 Governing Law. This Agreement shall be governed by the laws of the State of New York, without regard to conflict-of-laws principles.

12.2 Binding Arbitration. Any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration in New York, New York, under the Commercial Arbitration Rules of the American Arbitration Association. The arbitration shall be conducted by a single arbitrator mutually selected by the Parties; if the Parties cannot agree within fifteen (15) days, the AAA shall appoint one. The arbitrator's decision shall be final and binding, and judgment may be entered in any court of competent jurisdiction. Each Party shall bear its own attorneys' fees, and the Parties shall share arbitrator and administrative costs equally unless the arbitrator determines otherwise. The proceedings and award shall be confidential except as required by law or to enforce the award. THE PARTIES WAIVE ANY RIGHT TO PARTICIPATE IN A CLASS ACTION, CLASS ARBITRATION, OR CONSOLIDATED ARBITRATION.

12.3 Equitable Relief. Notwithstanding Section 12.2, either Party may seek injunctive or other equitable relief in any court of competent jurisdiction to prevent irreparable harm pending arbitration.

13. General Provisions

13.1 Force Majeure. Neither Party shall be liable for any failure or delay in performing its obligations (other than payment obligations) to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disaster, pandemic, war, terrorism, civil unrest, labor disputes, internet or telecommunications failures, or cyberattack (each, a "Force Majeure Event"). For the avoidance of doubt, illegality arising from sanctions, embargoes, or regulatory action is governed by Sections 4.8, 4.3(d), and 6.4, and is not a Force Majeure Event. The

affected Party shall promptly notify the other Party and use commercially reasonable efforts to resume performance. If a Force Majeure Event continues for more than sixty (60) consecutive days, either Party may terminate this Agreement upon written notice, without liability except for commissions accrued on Commissionable Transactions prior to termination.

13.2 Entire Agreement. This Agreement, including all Exhibits, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, and agreements.

13.3 Order of Precedence. In the event of any conflict between the body of this Agreement and any Exhibit: (i) the body controls, except that product-specific Resale Prices in Exhibit A and commission rates in Exhibit B govern for those Products, and the data processing terms in Exhibit C govern their subject matter; (ii) the Compliance Policy (Exhibit D) supplements but does not override the body; in the event of a conflict between Exhibit D and the body, the body controls.

13.4 Amendments. This Agreement may only be amended by a written instrument signed by both Parties. Updates to Exhibit A shall be governed by Section 2.4. Updates to Exhibit D shall be governed by Section 4.3(c).

13.5 Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except that the Company may assign in connection with a merger, acquisition, or sale of substantially all of its assets. Any purported assignment in violation of this Section is void.

13.6 Notices. All notices shall be in writing and sent to the addresses set forth above (or such other address as designated in writing). Notices shall be deemed given upon: (i) personal delivery; (ii) one business day after deposit with a nationally recognized overnight courier; or (iii) transmission by email with confirmation of receipt.

13.7 Severability; Waiver. If any provision is held invalid or unenforceable, the remaining provisions continue in full force and effect. The failure to enforce any right shall not constitute a waiver.

13.8 Survival. The following provisions shall survive termination or expiration: Section 1 (Definitions, to the extent necessary to interpret surviving provisions), Section 3.5 (Holdback, for the post-termination retention period), Section 3.7 (Refunds and Chargebacks), Section 3.10 (Taxes), Section 3.11 (Set-Off), Section 4.5 (No Agency), Section 4.9 and Exhibit C (Data Protection, to the extent of data return, deletion, and ongoing obligations), Section 4.10 (Non-Circumvention), Section 4.13 (Insurance, for the post-termination period), Section 6.5 (Effect of Termination), Section 6.6 (Tail Commissions), Section 7.3 (Remedies for Prohibited Conduct), Section 8 (Confidentiality), Section 9 (Representations, to the extent claims arose during the term), Section 10 (Limitation of Liability), Section 11 (Indemnification), Section 12 (Dispute Resolution), and this Section 13.8.

13.9 Counterparts and Electronic Signatures. This Agreement may be executed in counterparts, each of which shall be deemed an original. Execution by electronic signature (including DocuSign, Adobe Sign, or similar platform) or PDF transmission shall have the same legal effect as delivery of an original signed copy.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

TradeFundrr, LLC

Signature: _____

Name: Jason Love

Title: Director of Operations

Date: _____

[AFFILIATE LEGAL NAME]

Signature: _____

Name: _____

Title: _____

Date: _____

Exhibit A — Product Schedule

Effective as of: [DATE]

This Exhibit A sets forth the Products authorized for affiliate marketing under the Affiliate Agreement between TradeFundrr, LLC and [AFFILIATE LEGAL NAME].

Important Notes:

- (i) Initial-sale commissions are calculated on the Resale Price per Section 3.1 at the Affiliate Commission Rate for initial sales set forth in Exhibit B (or any product-specific initial-sale rate noted in Exhibit B). Activation fee commissions are calculated per Section 3.2 at the Affiliate Commission Rate for activation fees set forth in Exhibit B; if Exhibit B does not specify a separate activation fee rate, the standard Affiliate Commission Rate for initial sales applies. Monthly subscription fees are listed for reference only and are not commissionable (Section 3.3).
- (ii) Products marked as commission-ineligible do not generate commissions.
- (iii) Only Express Options and Express Stocks carry special resale pricing (\$899 vs. \$1,499 retail). All other commission-eligible Products are listed at retail price.
- (iv) In the event of any conflict between this Exhibit A and the body of the Agreement, the body controls, except that product-specific Resale Prices noted herein govern per Section 13.3.

Section 1 — Options Products

Product Name	Description	Account Size	Resale Price	Retail Price	Activation Fee (per activation, commissionable)	Monthly Fee (non-commissionable)	Special Pricing	Commission Eligible
Express Options	Express trading program for options	\$25K	\$899.00	\$1,499.00	N/A	\$99/mo	Yes	Yes
Express Options 10K	Express options program, \$10K account	\$10K	\$999.00	\$999.00	N/A	\$99/mo	No	Yes
Growth Options	Growth evaluation program for options	\$25K	\$399.00	\$399.00	\$149	\$99/mo	No	Yes

Section 2 — Stocks Products

Product Name	Description	Account Size	Resale Price	Retail Price	Activation Fee (per activation, commissionable)	Monthly Fee (non-commissionable)	Special Pricing	Commission Eligible
Express Stocks	Express trading program for stocks	\$100K	\$899.00	\$1,499.00	N/A	\$99/mo	Yes	Yes
Growth Stocks	Growth evaluation program for stocks	\$100K	\$399.00	\$399.00	\$149	\$99/mo	No	Yes

Section 3 — Futures Products

Product Name	Description	Account Size	Resale Price	Retail Price	Activation Fee (per activation, commissionable)	Monthly Fee (non-commissionable)	Special Pricing	Commission Eligible
Express Futures 50K	Express futures funding, \$50K account	\$50K	\$999.00	\$999.00	N/A	\$29/mo	No	Yes
Express Futures 100K	Express futures funding, \$100K account	\$100K	\$1,999.00	\$1,999.00	N/A	\$29/mo	No	Yes
Growth Futures 50K	Growth futures evaluation, \$50K account	\$50K	\$129.00	\$129.00	\$129	\$29/mo	No	Yes
Growth Futures 100K	Growth futures evaluation, \$100K account	\$100K	\$199.00	\$199.00	\$199	\$29/mo	No	Yes
Promo Futures 50K	Promo futures evaluation, \$50K account	\$50K	N/A	\$19.00	\$129	\$29/mo	No	No

Section 4 — Crypto Products

Product Name	Description	Account Size	Resale Price	Retail Price	Activation Fee (per activation, commissionable)	Monthly Fee (non-commissionable)	Special Pricing	Commission Eligible
Express Crypto 50K	Express crypto funding, \$50K account	\$50K	\$999.00	\$999.00	N/A	N/A	No	Yes
Express Crypto 100K	Express crypto funding, \$100K account	\$100K	\$1,999.00	\$1,999.00	N/A	N/A	No	Yes
Growth Crypto 50K	Growth crypto evaluation, \$50K account	\$50K	\$199.00	\$199.00	\$129	N/A	No	Yes
Growth Crypto 100K	Growth crypto evaluation, \$100K account	\$100K	\$499.00	\$499.00	\$129	N/A	No	Yes
Promo Crypto 5K	Promo crypto evaluation, \$5K account	\$5K	N/A	\$1.00	\$29	N/A	No	No

Exhibit B — Affiliate Commission Schedule

Effective as of: [DATE]

This Exhibit B sets forth the Affiliate Commission Rate(s) applicable to [AFFILIATE LEGAL NAME] under the Affiliate Agreement with TradeFundrr, LLC.

1. Standard Affiliate Commission Rate

Item	Rate
Commission on Initial Sales (applied to Resale Price)	[__]%
Commission on Activation Fees (applied to activation fee amount)	[__]% (if left blank, the Initial Sales rate above applies per Section 3.2)

2. Product-Specific Commission Rates (if applicable)

If a product-specific rate is listed below, it overrides the Standard Affiliate Commission Rate for that Product only. Products not listed below are governed by the Standard Affiliate Commission Rate in Section 1 above.

Product Name	Commission Rate on Initial Sale	Commission Rate on Activation Fee
[Product Name]	[__]%	[__]%
[Product Name]	[__]%	[__]%

If no product-specific rates are entered above, the Standard Affiliate Commission Rate applies to all commission-eligible Products.

3. Rate Changes

Any change to the Affiliate Commission Rate or product-specific rates requires a written amendment to this Exhibit B signed by both Parties.

Acknowledged and Agreed:

TradeFundrr, LLC

Signature: _____

Name: _____

Title: _____

Date: _____

[AFFILIATE LEGAL NAME]

Signature: _____

Name: _____

Title: _____

Date: _____

Exhibit C — Data Processing Agreement

Effective as of: [DATE]

This Data Processing Agreement (“DPA”) is entered into by and between TradeFundrr, LLC (“Controller” or “Company”) and [AFFILIATE LEGAL NAME] (“Affiliate”) and forms part of the Affiliate Agreement (the “Agreement”). To the extent of any conflict between this DPA and the body of the Agreement on matters of data protection, this DPA shall prevail pursuant to Section 13.3.

1. Scope and Roles

1.1 Controller and Processor. The Company is the Controller of Personal Data relating to end customers and prospective customers of the Products. To the extent Affiliate processes such Personal Data on behalf of the Company — including receiving, storing, or transmitting referral data, customer identifiers, or attribution data provided by the Company or collected through the Tracking Mechanism — Affiliate acts as a Processor, and the obligations in Sections 2 through 5 of this DPA apply to that processing.

1.2 Affiliate as Independent Controller. To the extent Affiliate independently determines the purposes and means of processing Personal Data in connection with its own marketing activities — such as managing its own mailing lists, operating its own websites, running its own advertising campaigns, or collecting data directly from individuals for Affiliate’s own purposes — Affiliate acts as an independent controller for that processing and is solely responsible for compliance with all applicable data protection laws with respect to such processing. This DPA does not govern Affiliate’s processing as an independent controller; Affiliate’s obligations as an independent controller arise under applicable law.

1.3 Processing Activities (Processor Role).

- (i) **Subject Matter and Purpose:** Processing for referring the Products, tracking attribution, and administering commissions.
- (ii) **Categories of Data Subjects:** End customers and prospective customers.
- (iii) **Types of Personal Data:** Name, email address, phone number, IP address, device identifiers, referral source data, cookie and tracking data, and (where voluntarily provided) country of residence and language preference.
- (iv) **Duration:** For the term of the Agreement plus the period required for data return or deletion under Section 6.

2. Processor Obligations

2.1 Instructions. In its capacity as Processor, Affiliate shall process Personal Data only on documented instructions from Controller, unless required by applicable law (in which case Affiliate shall inform Controller before processing, unless prohibited by law).

2.2 Confidentiality. Affiliate shall ensure that authorized persons have committed to confidentiality or are under an appropriate statutory obligation.

2.3 Security. Affiliate shall implement appropriate technical and organizational measures, including as appropriate: (i) pseudonymization and encryption; (ii) ongoing confidentiality, integrity, availability, and resilience of systems; (iii) timely restoration capability; and (iv) regular testing and evaluation of security measures.

2.4 Sub-Processors. Affiliate shall not engage any sub-processor to process Personal Data received in its Processor capacity under this DPA without Controller's prior general written authorization. Affiliate shall: (i) impose equivalent data protection obligations by written contract; (ii) remain fully liable for sub-processor performance; and (iii) inform Controller of any intended changes concerning the addition or replacement of sub-processors, giving Controller ten (10) business days to object. If Controller objects on reasonable grounds and no resolution is reached, Controller may terminate the Agreement on thirty (30) days' notice.

2.5 Data Subject Rights. Affiliate shall assist Controller with data subject requests and shall not respond directly without Controller's authorization (unless required by law).

2.6 Breach Notification. Affiliate shall notify Controller within forty-eight (48) hours of becoming aware of a Personal Data breach affecting data processed in its Processor capacity, describing the nature, likely consequences, and measures taken or proposed.

2.7 Impact Assessments. Affiliate shall provide reasonable assistance with data protection impact assessments and supervisory authority consultations.

3. International Data Transfers

3.1 Transfer Mechanism. Transfers of Personal Data from the EEA, UK, or Switzerland to Affiliate outside those regions shall be subject to the European Commission's Standard Contractual Clauses (Commission Implementing Decision (EU) 2021/914), Module Two (Controller to Processor), incorporated by reference.

3.2 SCC Elections. Clause 7: included. Clause 9: Option 2 (general written authorization, consistent with Section 2.4 of this DPA). Clause 11: optional clause not included. Clause 13: supervisory authority where data exporter is established. Clause 17: law of Ireland. Clause 18: courts of Ireland. The selection of Irish law and courts for SCC Clauses 17 and 18 is required by the Standard Contractual Clauses framework, which mandates an EU/EEA member state forum, and does not alter the governing law or dispute resolution provisions of the Agreement for non-DPA matters. Annex I: Data exporter: TradeFundrr, LLC; Data importer: [AFFILIATE LEGAL NAME]; description per Section 1.3. Annex II: measures per Section 2.3.

3.3 UK and Swiss Transfers. UK International Data Transfer Addendum applies for UK transfers. Swiss modifications apply as required under the Swiss Federal Act on Data Protection.

4. US State Privacy Laws

4.1 CCPA. To the extent Affiliate processes Personal Data (as defined in the Agreement, which includes "personal information" under the CCPA) of California residents in its Processor capacity under this DPA: (i) the Company is the "Business" and Affiliate is a "Service Provider" as those terms are defined under the CCPA; (ii) Affiliate shall not sell or share (as defined under the CCPA) Personal Data received from or on behalf of the Company; (iii) Affiliate shall not retain, use, or disclose such Personal Data for any purpose other than performing under the

Agreement and as permitted by the CCPA for service providers, and shall not combine such data with personal information received from other sources except as permitted by the CCPA; (iv) Affiliate shall comply with all applicable CCPA requirements applicable to service providers; and (v) if Affiliate determines it can no longer meet its CCPA obligations under this Section, it shall promptly notify the Company.

4.2 Other US State Privacy Laws. To the extent any other US state privacy law applies to Affiliate's processing of Personal Data under this DPA, Affiliate shall comply with the requirements of such law applicable to service providers, processors, or the equivalent role, and the provisions of Section 4.1 shall apply by analogy to such law.

5. Audit Rights

5.1 Controller may audit Affiliate's compliance with this DPA upon fifteen (15) business days' notice, no more than once annually (unless a breach has occurred or non-compliance is reasonably suspected). Affiliate shall make available information necessary to demonstrate compliance.

6. Data Retention and Deletion

6.1 Upon termination or Controller's written request, Affiliate shall return or delete all Personal Data processed in its Processor capacity (and certify deletion) within thirty (30) days. Retention is permitted only to the extent required by applicable law, subject to ongoing confidentiality and security obligations.

7. Liability

7.1 Liability under this DPA is subject to Section 10 of the Agreement, except that breaches of this Exhibit C are carved out of the liability cap per Section 10.1.

8. Duration

8.1 This DPA remains in effect for the duration of the Agreement and terminates upon completion of Section 6 obligations. Sections 6 and 7 survive termination.

Exhibit D — Compliance Policy

Effective as of: [DATE]

Last Updated: [DATE]

This Compliance Policy implements the marketing compliance obligations set forth in Section 4.3 of the Affiliate Agreement between TradeFundrr, LLC (“Company”) and [AFFILIATE LEGAL NAME] (“Affiliate”). This Exhibit D supplements but does not override the body of the Agreement; in the event of a conflict, the body controls (Section 13.3). Updates to this Exhibit D are governed by Section 4.3(c).

1. Earnings and Performance Claims

1.1 Pre-Authorization Required. No earnings claim, income claim, profit claim, pass-rate claim, or performance claim of any kind may be made without the Company’s prior written authorization, which shall include the approved claim language and any required disclosures.

1.2 Substantiation. Affiliate shall maintain competent and reliable evidence substantiating any authorized claim at the time it is made.

1.3 Approved Disclaimers. All Marketing Materials containing authorized earnings or performance information shall include the Company’s approved earnings disclaimer, which the Company shall provide under Section 5.3 of the Agreement.

1.4 Prohibited Claims. The following claims are never permitted regardless of substantiation: (i) guaranteed trading profits or income; (ii) specific financial outcome predictions; (iii) that funded-account programs eliminate financial risk; (iv) that the Products constitute investment advice or securities recommendations.

2. Material-Connection Disclosures

2.1 When Required. Any Marketing Material that could be perceived as an independent or organic endorsement, including social media posts, blog articles, video reviews, and influencer content, shall include a clear and conspicuous material-connection disclosure.

2.2 Format. Disclosures shall be: (i) in the same language and medium as the endorsement; (ii) placed where they will be seen before the consumer acts (not buried in terms or below the fold); and (iii) use clear language (e.g., “#ad,” “#sponsored,” “paid partnership”) compliant with applicable platform guidelines and FTC guidance.

2.3 Compensated Endorsers. Any endorser who is an employee, contractor, or compensated affiliate of Affiliate must disclose that relationship.

3. Anti-Spam, Telemarketing, and Electronic Communications

3.1 Email Marketing. All commercial email shall: (i) accurately identify the sender; (ii) include a clear subject line; (iii) contain a conspicuous and functioning opt-out mechanism honored within ten (10) business days; and (iv) include a valid physical postal address.

3.2 Calls and Texts. No unsolicited calls, texts, or faxes shall be sent using automated systems without prior express written consent. All applicable do-not-call registry requirements shall be observed.

3.3 Canadian Recipients. Commercial electronic messages to Canadian recipients require express or implied consent under CASL, with compliant identification and unsubscribe mechanisms.

3.4 Jurisdictional Compliance. Affiliate shall comply with the anti-spam, telemarketing, and electronic-communications laws of each jurisdiction where it markets the Products.

4. Cookie and Tracking Consent

4.1 Company Properties. The Company is responsible for cookie and tracking consent on its own websites and checkout pages.

4.2 Affiliate Properties. Affiliate shall implement and maintain a consent management mechanism (e.g., cookie consent banner) on its own websites and landing pages that obtains valid consent prior to placing non-essential cookies or tracking technologies, in compliance with applicable law (including the ePrivacy Directive, PECR, and GDPR where applicable).

5. Record Retention

5.1 Affiliate shall retain: (i) copies of all Marketing Materials; (ii) substantiation evidence for any earnings or performance claims; (iii) records of material-connection disclosures; and (iv) records of all consents obtained and opt-out requests honored, for a period of three (3) years from the date of last use or publication. Such records shall be produced to the Company upon request within ten (10) business days.

6. Updates

6.1 The Company may update this Compliance Policy in accordance with Section 4.3(c) of the Agreement. Updates reflecting changes in applicable law, regulatory guidance, or advertising-platform policies do not require Affiliate's consent. Updates that materially increase Affiliate's obligations beyond what applicable law requires are effective only upon mutual written agreement.